

ACKNOWLEDGEMENT OF DEBT

The parties to this Acknowledgement of Debt are listed below as follows:

KUTLWANO & ASSOCIATES (PTY)

LTD REGISTRATION NUMBER:

2016/461385/07

Herein referred to as "the Creditor"

And

REGISTRATION NUMBER: _____

Herein referred to as "the Debtor"

The Creditor, Kutlwano and Associates (Pty) Ltd, who for purposes of this agreement is duly represented by the company's Managing Director Mr. Moleka Boshomane.

The Debtor, _____, who for purposes of this agreement is duly represented by the company's _____ (state capacity)
Mr./Ms. _____

The parties have entered into this agreement in good faith and for the purposes of safeguarding the interests of the Creditor for the payment of money/monies that are due to the Creditor by the Debtor, [in respect of medico-legal assessments](#), as per the amount stated herein and as per the terms and conditions stipulated below.

The parties will hereunder, confirm the terms of payment are applicable as per the agreement of a deposit payment with the balance to be paid in quarterly (every three months) instalments.

2.2 A minimum of ten (10) assessments referred by the Referring Attorney to the Kutlwano & Associate shall constitute and activate this Agreement.

2.3 Any further assessments referred beyond the initial ten (10) shall be governed by the same terms and conditions herein.

SCOPE OF SERVICES

Kutlwano & Associate PTY LTD shall provide medico-legal assessment services which may include but are not limited to:

1. Road Accident Fund (RAF);
2. Personal injury;
3. Medical negligence;
4. Related specialist reports;
5. Preparation of joint minutes and expert testimony, where required.
6. Kutlwano & Associate PTY LTD shall ensure that all assessments are undertaken by duly qualified and registered medical experts.

1. TERMS OF THE AGREEMENT:

- 1.1. The Creditor has rendered services and provided medico legal reports to the Debtor which are to the value/amount of R_____ (amount in words).
- 1.2. The Debtor agrees to the amount in paragraph 1.1 above, the parties confirm that the Debtor will/has pay/paid:
 - A deposit on the XX of XXXXXX 202x, to the Creditor, in the amount of R_____. (amount in words)
 - With outstanding confirmed balance of R_____ (amount in words)
- 1.3. The Debtor further confirms and agrees to pay the outstanding balance to the Creditor,
 - Over a period of ____ quarters,
 - With ____ quarterly payments of R _____ rands (amount in words).
 - The first quarter payment by the Debtor will be due on the X
 - The last quarter payment will be due on the X
- 1.4. The parties, more specifically the Debtor, agree and confirm that the amounts stated in paragraph 1.1, 1.2 and 1.3. above are as agreed and are

not in dispute, (roll out plan of reports will be found in Annexure A below).



- 1.5. The parties, more specifically the Debtor, agrees and confirms that the amount stated in paragraph 1.2. above is subject to payment by the Debtor and that the quarterly payment shall be made no later than the close of business on the last day of the stated months.
- 1.6. In the event that the Debtor is unable to effect the required payment by the date stipulated in paragraph 1.5 above, the Debtor shall advise the Creditor, in writing, immediately and no later than 7(seven) days of the payment becoming due, advising and providing the Creditor with reason for the late payment and officially request an extension if necessary.
- 1.6.1. The Debtor is aware that any indulgence granted is strictly within the sole discretion of the Creditor and the Creditor if amenable to granting the extension, will provide the Debtor with written and state in writing the duration of the granted indulgence.
- 1.7. The Debtor acknowledges and agrees that any request as stated in 1.6 above for an extension/indulgence being sought, is subject to approval and granting by the Creditor. The Creditor has sole discretion to either grant or deny the request made by the Debtor. In the event if same being granted, The Creditor will confirm in writing, the duration of the extension/indulgence permitted.
- 1.8. In the event of the Creditor denying to grant any indulgence and/or extension, the Debtor confirms and agrees that the Creditor shall immediately, upon advising the Debtor of such rejection, be at liberty to take up any necessary action to recover any outstanding money as due to the Creditor.

2. DURATION OF THE AGREEMENT:

2.1. The parties agree that the agreement will remain in place and in effect from date of signature up to the Debtor making the full payment of the amount stipulated in paragraph 1.1. above. **This Agreement shall commence on the Effective Date and shall remain in force for a fixed term of twelve (12) to twenty-four (24) months, as agreed in writing by the Parties.**

7.2 This Agreement shall terminate automatically upon expiry of the agreed term, unless renewed in writing and signed by both Parties.

2.2. In the event of the Debtor failing to effect the necessary payments as per the agreed terms as stated herein as stipulated in paragraphs 1.2 and 1.3 above, the Creditor reserves the right to **charge an interest on overdue amounts at the prevailing legal rate; suspend any further services until payment is received in full;** or pursue legal action to recover all amounts owing as per the agreement, including the expenses to be incurred in the recovery of the outstanding monies.

2.3. The agreement shall remain in place and in force until such a time that the Debtor satisfies the terms of the agreement and has paid over the full amount as stated under paragraph 1.1 above.

2.4. The parties agree that should a dispute arise, due to the Debtor failing to make the necessary and required payments, as agreed and tabled in 1.3. above and/or as per the provisions of paragraph 1.8 above, the Creditor reserves the right to take up the necessary legal remedies to ensure the recovery of the outstanding balance of the amount stipulated in paragraph 1.3., including any interest due and calculated from date of default by the Debtor and the legal fees incurred in the recovery of the amount(s) due.

2.5. The Creditor shall immediately upon the lapsing of the agreed period as per the date stated in 1.3 above and/or the Debtor being in default of the terms of the agreement, the Creditor shall immediately upon the said default, be fully entitled to take up the necessary steps (i.e. institute legal proceedings) against the Debtor to seek the necessary relief to ensure the recovery of

the outstanding monies from the Debtor.



3. **GOVERNING AGREEMENT:**

3.1. The parties confirm that the Debtor is bound by the terms of agreement and is indebted to the Creditor as per clauses 1-2 of the agreement. The Debtor will be bound to make and effect the specific payments as per clause 1 of the agreement.

3.2. The Debtor confirms that they have selected the above-mentioned agreement to bind and govern their terms of agreement with the Creditor.

3.3. The parties further agree that the provisions of the selected agreement shall apply and will not be amended without any written consent from the Creditor this includes the terms of payment or otherwise, and shall remain binding to the parties until the Debtor has satisfied all the terms of the agreement in full.

3.4. The Debtor shall make any and all required payments into the Creditor's bank account, details of which are contained below:

Bank held: First National Bank

Account name: Kutlwano and Associate

(Pty) Ltd Account number: 62770592270

Branch name: Middestad

Branch code: 260448

4. **DOMICILIUM CITANDI ET EXECUTANDI:**

The parties agree and state that in the event of a dispute arising in terms of this agreement, the parties choose to have legal processes served on them at the address stated below.

4.1. The Creditors chosen *domicilium* is 52 Quatar Crescent, Cosmo City,
Ext 10, Roodepoort, 2188

4.2. The Debtors chosen *domicilium* is _____

4.3. The parties' consent to any dispute that may arise out of this agreement, to be referred and be heard to the appropriate Court that has Jurisdiction over where the Creditor is domiciled, with due consideration of the monetary jurisdiction of the appropriate Court.

5. CONFIDENTIALITY

5.1. Both Parties shall treat all information exchanged in connection with this Agreement as strictly confidential.

5.2. Neither Party shall disclose or use any such information for purposes other than the execution of this Agreement, except as required by law or with the prior written consent of the other Party.

6. DISPUTE RESOLUTION

6.1. Any dispute arising from or in connection with this Agreement shall be resolved as follows:

- i. Firstly, through good-faith negotiation between the Parties;
- ii. Failing settlement, the dispute shall be referred to mediation; and
- iii. If unresolved, the matter shall be submitted to a competent court of law in the Republic of South Africa having jurisdiction.

7. DECLARATION BY DEBTOR:

7.1. I, the undersigned Debtor, having confirmed that I am duly authorised to enter in this agreement, do hereby acknowledge and confirm that the entity that I represent herein, confirm that we are truly and lawfully indebted to a favour of the creditor in the amount stipulated in paragraph 1.1 above.

- 7.2. I further state that the amount of R___, as stated herein, refers to the amount owing to the Creditor, which has arisen as a result of the services rendered and/or providing of medico legal reports by the Creditor. I further confirm that the services rendered were as per my instructions and at my special instance and request, (roll out plan of reports will be found in Annexure A below).
- 7.3. The capital amount due is for services rendered by the Creditor with an undertaking that the agreed amount will be paid to the Creditor, by the Debtor within the agreed time frames as tabled in clause 1 above.
- 7.4. In the event of the Debtor, failing to make the necessary and required payment as per dates stated above in the relevant clause tabled above, the **Debtor shall be liable for the outstanding payments which will include interest calculated at the rate of 7.25%.**
- 7.5. I, as the Debtor, acknowledge that the interest will be calculated from the date of default and continue to be calculated until date of full payment of the capital amount.
- 7.6. I, as the Debtor, agree that should I/we fail to effect the necessary and agreed payment timeously and being in default of the terms of the agreement, we are aware that the Creditor bears the right to engage and take on the necessary legal steps and approach the necessary Court to ensure the recovery of the outstanding monies as due by the Debtor.
- 7.7. I as the Debtor bind myself and the entity that I represent to be liable to the Creditor up to date of full payment of the money/funds due to the Creditor.

8. GENERAL PROVISIONS

- 8.1. This Agreement constitutes the entire understanding between the Parties and supersedes all prior discussions or agreements.
- 8.2. No amendment, variation, or waiver shall be valid unless reduced to writing and signed by both Parties.
- 8.3. Neither Party may cede, assign, or transfer its rights or obligations without the prior written consent of the other Party.
- 8.4. In the event of a force majeure or circumstances beyond the Parties' control, performance shall be suspended for the duration of such event without penalty

SIGNED AT _____ **ON THIS THE** _____ **DAY OF** _____.

CREDITOR

Duly authorised representative: Mr Moleka Boshomane.

AS WITNESSES:

Full Name:
ID
Signature:

SIGNED AT _____ **ON THIS THE** _____ **DAY OF** _____.

DEBTOR

Duly authorised representative

AS WITNESSES

Full
Name:
ID
Number:
Signature

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ANNEXURE A – PAYMENT & REPORT RELEASE SCHEDULE

This Annexure forms an integral part of the Medico-Legal -Service Level Agreement between Kutlwano & Associate (Pty) Ltd and Referring Attorney. It outlines the agreed payment stages, percentages, partial payment, and corresponding report release procedures.

Stage	Description	Percentage/ Payable	Action/Outcome
Stage 1	Confirmation of Assessment Booking	30% – 50% deposit (depending on volume)	Booking confirmed and assessment date secured.
Stage 2	Assessment Conducted	–	Expert examination and data collection completed.
Stage 3	Draft Report Ready	partial payment due upon report delivery	Report released to the referring attorney upon receipt of partial payment.
Stage 4	Post-Report Clarification (if required)	No additional fee unless further expert work is requested	Clarifications or additional notes provided after settlement of all fees.
Stage 5	Affidavits and Joint Minutes	Full payment	Issued out within 3 -7 days

Payment Schedule

The structured payment plan for referring attorneys based on the number of medico-legal assessment reports requested and delivered.

Payment Amount (ZAR)	Equivalent Number of Reports	Outcome
R 50,000.00	Equivalent to 11 reports	Initial instalment or first batch payment
R 50,000.00	Equivalent to 15 reports	Second instalment after first batch completion
R 75,000.00	Equivalent to 20 reports	Optional additional payment for extended work or high volume
Custom Amount	As agreed in writing	Applicable for large-scale or ongoing projects

Notes:

- **Additional expert meetings or court appearances may be invoiced separately.**

